

The complaint

Miss D complains that Aviva Insurance Limited unfairly declined a claim for storm damage on her buildings insurance policy.

What happened

Miss D said her property had suffered from strong winds and storms in the past few years. She noticed water damage in the airing cupboard and thought that the roof profile had dropped. So she contacted her insurer. But Aviva took a long time to issue its findings and Miss D said it unfairly rejected her claim. She'd arranged for a roofer to carry out an inspection and they felt it was due to storm damage. So she wants Aviva to consider her claim.

Aviva said there were storm conditions around the time Miss D lodged the claim. But after inspecting the property it couldn't find any damage to the roof. After reviewing photos provided by the independent roofer Aviva said they showed evidence of wear and tear rather than storm damage. And it felt it'd declined the claim correctly.

Aviva accepted its findings should've been sent to Miss D sooner. She'd only become aware of Aviva's decision after chasing for a response. And it apologised and offered Miss D £100 compensation for the delay.

Miss D wasn't satisfied with Aviva's response. So she contacted our service and our investigator looked into the matter. Our investigator looked at all of the information but didn't think there was enough evidence to suggest a storm was the main cause of the damage.

She looked at the surveyor's report, but the facias and roof appeared undamaged. She could see some moss growth and the chimney flaunching and pointing appeared to be in poor condition. And our investigator felt the staining in the airing cupboard looked like it'd occurred gradually rather than because of a one-off storm event. So she couldn't say the storm was the main cause of the damage. And she thought Aviva's decision to decline the claim was in line with the evidence she'd seen.

Miss D didn't agree with our investigator. She felt most roofs were susceptible to moss growth. And Aviva had accepted there were storm conditions at the time. So she's asked for an ombudsman's final decision.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

I can appreciate how upsetting this has been for Miss D. She's been a loyal customer of Aviva and she expected her insurer to help when she reported a problem.

As our investigator has explained, our service considers three main questions when looking at this type of complaint.

The first thing I look at is whether there was a storm at the time in question. If there wasn't a storm there can't have been any damage caused by a storm. Miss D says her property had been affected by strong winds and storms for some time. And Aviva accepts there was a storm around the time she lodged her claim. So I'm happy the first question is satisfied.

The second and third question I look at if I'm satisfied there's been a storm is whether the damage to Miss D's property is consistent with what I'd expect a storm to cause. And if so whether the storm is the main cause of the damage suffered. But I'm afraid I don't think these were satisfied here.

The surveyor's report said there wasn't any damage to the soffits and fascias and the roof tiles were all in place. Although the report said there was no evidence of storm damage to the property, it did say there were areas of the roof that were in a poor condition and required maintenance. There was some water staining in the airing cupboard, but the surveyor felt aging and gradual deterioration rather than damage from a one-off storm event was the likely cause.

I think Aviva was entitled to rely on its surveyor's opinion to decline Miss D's claim and I don't think it was unreasonable for it to do so. I appreciate Miss D sent photos from a roofer who said a section of the tiles was lifting during high winds. But after reviewing the photos Aviva still felt there was no evidence of storm damage and any problems pre-existed the bad weather.

Miss D didn't receive an update from Aviva after it received the loss adjuster's report. If she had, it would've allowed Miss D to send the roofer's photos for a second opinion much sooner. Even though Aviva still felt the photos showed evidence of wear and tear rather than storm damage, I think Miss D was put through unnecessary additional stress and uncertainty while she waited for a decision.

Aviva has accepted it should've updated Miss D sooner. And its paid £100 compensation for any trouble and upset caused. I think that's the right decision. It's the sort of amount I would've asked the insurer to pay if it hadn't already done so.

But based on everything I've seen I think Aviva's decision not to settle Miss D's claim for storm damage was fair and reasonable. I know Miss D will be disappointed with this outcome. But after looking very carefully at everything Miss D and Aviva have said, including the roofer's photos and Aviva's response, I'm not persuaded the damage is the result of a storm.

I don't think Miss D has thrown sufficient doubt on Aviva's conclusions to make me think it should change its opinion. And I won't be asking it to do anything more.

My final decision

My final decision is that I do not uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Miss D to accept or reject my decision before 4 January 2022.

Andrew Mason
Ombudsman